

awarded in the amount of \$6,910.00 and costs are awarded in the amount of \$1,721.51 for a total of \$8,631.51. The Court will prepare the formal Order.

Calendar Line # 6

Case Name Anson Vasquez vs Tyler Stayskal et al

Case No. 24CV451194

Motion to Compel Responses to Form Interrogatories and Request for Production of Documents, Set One; and Sanctions

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a motor-vehicle accident that occurred on or around September 15, 2023. On November 7, 2024, Plaintiff Anson Vasquez (“Vasquez”) filed a Complaint against Defendants Tyler Stayskal and Michelle Tedford (collectively “Defendants”) for motor vehicle accident resulting in personal and property damages, and also sought punitive damages. (Complaint). Defendants filed an Answer on September 30, 2025.

B. RELEVANT PROCEDURAL BACKGROUND

On September 30, 2025, Defendants propounded initial written discovery including form interrogatories (“FROG”), set one, and Request for Production of Documents (“RFPD”), on Plaintiff Vasquez via electronic mail. (Declaration of Ryan, at p. 2; Exhibit A). Defendants asserts that responses were due on November 4, 2025. (*Id.*). On November 13, 2025, defense counsel sent the plaintiff a meet-and-confer letter setting forth that no responses were served and that if no discovery responses were received within ten days, the defendants would seek a motion to compel and sanctions. (*Id.*; Exhibit B).

On December 10, 2025, Defendants filed this present motion to compel FROGs and SPROGS, set one, and sanctions. The motion was accompanied by a proof of service indicating electronic service on the plaintiff on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Per the defendants most recent case management statement dated July 10, 2026, in section 16(c), the defendants stated that the defendants are still awaiting discovery responses.

The Court has carefully reviewed the Defendants moving papers including a notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 5 pages); Declaration of Williams Ryan in support of the defendant’s moving papers with Exhibits A-B attached (totaling 19 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, §

2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co.*, *supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

Code of Civil Procedure section 2031.010(d) allows a party to “demand that any other party allow the party making the demand, or someone acting on the demanding party’s behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it.” Such a demand may be “without leave of court at any time that is 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first.” (Code Civ. Proc., § 2031.020(b)). “The party making a demand for inspection, copying, testing, or sampling shall serve a copy of the demand on the party to whom it is directed and on all other parties who have appeared in the action.” (Code Civ. Proc., § 2031.040). If no response is served, the party making the demand may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300(b)).

III. ANALYSIS

Here, the defendants served the plaintiff with FROG and RFPD on September 30, 2025. Ten months since the initial discovery was pounded, the plaintiff has failed to provide any responses. (Defendant’s Motion, p. 2).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the

one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c)).

The Defendants seek a total of \$1,200.00 in attorney’s fees based on four hours spent on preparation and filing of this present motion and an anticipated 2 hours for reviewing oppositions, preparing a reply brief, and attending the hearing at the hourly rate of \$200.00. The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. Based on the straightforward nature of the motion, the Court reduces the requested number of hours to three hours at the requested hourly rate. Thus, the request for sanctions in the amount of \$1,200 is DENIED. The Court awards the defendants sanctions in the amount of \$600.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the defendants motion to compel responses to FROG and RFPD, set one. Plaintiff is ORDERED to serve verified responses to FROG and RFPD, set one within 20 days from this hearing date.

Based on the Court’s granting the motion to compel and the plaintiff not serving any responses to FROGs ad RFPD for approximately ten months from when they were served, the defendants motion for sanctions against the plaintiff is GRANTED. However, the requested amount of \$1,200.00 is DENIED. The Court will award sanctions for attorney’s fees and costs in the amount of \$600.00. The Plaintiff is ORDERED to pay the defendant \$600.00 within 20 days from this hearing date.

The Court will prepare the formal Order.

Calendar Line # 7

Case Name Amy Hunter vs San Jose Motorsport, Inc. et al.

Case No. 25CV474331

Petition to Compel Arbitration

I. BACKGROUND

Plaintiff Amy Hunter (“Plaintiff”) was employed by Defendant San Jose Motosport Inc. (“San Jose BMW”) in February 2014. (Complaint at ¶ 9). Plaintiff was a Sales Manager and a salaried and commissioned employee. (*Id.* at ¶ 10). Plaintiff alleges that she was discriminated against because of her age. (*Id.* at ¶¶ 12-14). Defendant Willie Hodgson (“Hodgson”) hired his sister who is significantly younger the Plaintiff. (*Id.* at ¶ 15). Hodgson’s sister was promoted to a position comparable to Plaintiff and many of Plaintiff’s duties were transferred to Hodgson’s sister despite Plaintiff’s years of experience. (*Ibid.*).

Plaintiff further alleges she did not receive proper commissions for the sales that she made. (Complaint at ¶¶ 16, 17). Plaintiff made a formal complaint about her commissions, but Hodgson never agreed to discuss the issue. (*Id.* at ¶¶ 18-21). In early 2024, Plaintiff was demoted to Salesperson after she began complaining about her commissions. (*Id.* at ¶ 23).

Plaintiff suffered an emotional breakdown due to the stress she faced at work and sought medical care. (Complaint at ¶ 28). Plaintiff was placed on leave for ten days. (*Ibid.*). Plaintiff was diagnosed with stress and anxiety and began seeking mental health treatment. (Complaint at ¶ 30). Plaintiff’s employment was terminated on June 27, 2024, while she was on leave. (*Id.* at ¶ 32). Plaintiff believes she was terminated because of her age and complaints about not being paid the proper commissions owed to her. (*Id.* at ¶ 33).